

Court No. - 21

Case :- WRIT - C No. - 9212 of 2023

Petitioner :- Pramod Shankar Sharma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- R.P.S. Chauhan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The petitioner has challenged the final assessment order dated 23.8.2022 issued by respondent No.3 and the recovery citation dated 16.1.2023 issued in pursuance thereof. He has also prayed for direction to the respondents to consider his statutory objections dated 25.7.2022, 26.9.2022 and 6.2.2023 filed in response to the notice of the provisional assessment.

Sri Pranjal Mehrotra, learned counsel for the Electricity Department states that the final assessment order is not in consonance with the requirements of law and submits that the same will be withdrawn and a fresh order will be passed after following the procedure provided under the Electricity Supply Code, 2005.

Having regard to above statement, we hereby quash the final assessment order dated 23.8.2022 and the recovery citation dated 16.1.2023 and leave it open to the respondents to pass a fresh order strictly in accordance with law.

The petition stands disposed of.

Order Date :- 22.3.2023

skv

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)